

Tentative Rulings
September 15, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, by CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Mabudian, M.D., et al, v. Beaver Medical Group, PC, et al*, Case No. CIVSB2133187
Defendants' Motion to Seal
9/15/26, 1:30 p.m., Dept. S-17

The Court would **GRANT** this unopposed motion. Notably, Plaintiff filed a Notice of Non-Opposition on September 1, 2026.

Unless confidentiality is required by law, all court filings are presumed to be public. (Rules of Court, rule 2.550(c).) In order to seal a court filing, the court must make five express findings: (1) there exists an overriding interest that overcomes the public's right of access; (2) the overriding interest supports the sealing; (3) there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored to the need; and (5) there are no less restrictive means to protect that overriding interest. (Rules of Court, rule 2.550(d).)

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Here, movant sets forth argument and evidence that the subject exhibits reflect non-public, competitively sensitive business information that has previously been designated as "confidential" pursuant to the Stipulated Protective Order governing the case. (See Wilson Decl., ¶¶3-4.) The Court would, therefore, grant the motion.
